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The Rule Nobody Re-Read

A Survey of Body-Corporate Chairs on What Happens When a Precautionary By-Law Reaches Its Own Sunset Date

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Abstract. Precautionary institutional rules — adopted quickly after a single incident and given a stated review point, commonly twelve months — are meant to anticipate a repeat that has not yet occurred, then to be actively revisited once the anticipated risk has either recurred or not. We surveyed committee chairs at 193 residential strata schemes across three states whose own such rule had reached its stated twelve-month mark, identified from public AGM minute registers. Only 12% of these rules were lifted by an active vote; 27% were renewed through an uncontested motion; the remaining 61% simply continued, with no motion recorded in the minutes at all. Among chairs whose rule fell into this last group, just 9% could name any specific evidence — an incident log, a caretaker's report, a second complaint — reviewed before the twelve months elapsed. A chair's own ability to accurately recall the original precipitating incident showed no reliable association with whether the rule was actively revisited. We read these results as evidence that a stated sunset date functions, for most schemes, as a renewal default rather than a genuine reconsideration point, and discuss what this may suggest for anticipatory rules more generally, in institutions considerably larger than a residential strata scheme.

Introduction

A precautionary rule — adopted in the days after a single incident, before a second one has had the chance to occur — is a small, close-to-hand instance of anticipatory governance: a body decides, on the strength of one data point, that a risk is worth pre-empting, and commits to revisiting that judgement once a stated interval has passed. Twelve months is the interval residential strata schemes reach for most often, whether the precipitating incident is a blocked downpipe blamed on an overgrown balcony planter, a reported prowler prompting a trial CCTV camera, or a parcel gone missing from a shared lobby. The review point is the part of the design meant to keep the precaution honest: without it, a rule adopted for one unconfirmed risk has no occasion to be weighed against the risk's failure to reappear.

Whether that occasion is actually taken is a different question, and one a residential strata scheme is unusually well placed to answer: its committee meets on the record, its minutes are frequently lodged in a public register, and its "twelve months" is short enough that a single research team can observe the review point arrive within an ordinary project timeline. We ask what a body corporate committee does when its own precautionary rule reaches the date it set for itself, and whether a chair who says the rule "just continued" can point to anything reviewed before it did.

We make three contributions, each hedged to what committees, minutes, and self-report can show. First, we assemble what we believe is the first survey to measure directly what happens at the stated sunset date of a real, currently operating precautionary institutional rule, rather than inferring renewal patterns from the rule's continued existence alone. Second, we propose a three-category outcome taxonomy — lifted by vote, renewed through an uncontested motion, and continued with no motion recorded at all — that appears to organise the data cleanly and that we suggest may generalise to institutional review moments elsewhere. Third, we find that a chair's recall of the precipitating incident does not reliably predict which of these three outcomes their scheme reached, a result consistent with the sunset date functioning as a procedural default rather than an occasion for reconsideration, though our design cannot fully rule out alternative explanations for the null association.

Related work

A rule that persists once adopted is well documented outside strata title altogether. Decision-makers disproportionately retain whatever alternative is already in place, in laboratory choices and in real benefits selections alike [1], an effect that survives alongside the closely related endowment effect and loss aversion [2], and that a defaults-set lifted directly from public policy shows can move consent rates by tens of percentage points without a single argument being made either way [3]. Sunset clauses are one institutional answer to default persistence, forcing an affirmative decision before a measure can continue [4], though clauses adopted at a moment of urgency are particularly prone to renewal without the reconsideration they were designed to force [5]. The administrative-burden literature supplies a mechanism for why: a review that requires a committee to assemble and weigh evidence imposes learning and compliance costs on the very body meant to carry it out, costs that are easiest to avoid by declining to notice the review point at all [6]. An empirical analysis of sunset legislation at state level finds a comparable pattern at a much larger scale: formal sunset review is frequently satisfied by re-authorisation rather than by any change to the underlying program [7].

Political-science accounts of policy feedback and path dependence describe the same drift at the level of institutions rather than individual decisions: a policy or rule that persists long enough begins to generate the constituencies and habits that make its own continuation easier than its reconsideration [8], [9], a pattern historical-sociology work traces through the self-reinforcing sequences by which an initially contingent choice becomes progressively harder to revisit [10]. Organisational-routines research offers a complementary account at the scale of a single committee: a routine is not a fixed script but something performed anew on each occasion, which is precisely what allows a review point to be performed as a formality rather than as the substantive occasion it was designed to be [11], [12]. Chairs' own reluctance to revisit a rule may also reflect a more general preference to avoid unwelcome information, the "ostrich effect" documented in investors who check their portfolios less often precisely when checking is most likely to be informative [13]. Homeowners associations and body corporates specifically have drawn growing empirical attention for how readily they generate and enforce rules of exactly this precautionary kind [14], [15], [16], though none of this literature has, to our knowledge, followed an individual rule to its own stated review date. Prior work at this institution has found a formally similar pattern in two other settings: a bin-night roster's own predictive accuracy decays with age even though nothing about the roster itself changes [17], and whether an institutional discontinuation is treated as ongoing or lapsed has been shown to hinge on whether it was ever formally minuted, not on how much time has elapsed [18]; we extend this line to a rule's own stated review date rather than its unremarked ageing.

Method

We built a sampling frame from AGM and committee minutes lodged in the public strata-title registers of three states over an eighteen-month window, scanning for language flagging a precautionary rule adopted on an explicit trial basis with a stated review period of twelve months. Eligible minutes were required to name both the precipitating incident and the twelve-month review date; a minute recording only a permanent rule, or a review period of any other length, was excluded. The scan used a simple pattern-and-exclusion procedure:

```
for minute in lodged_agm_minutes:
    if
PRECAUTIONARY_PATTERN.search(minute.text)
       and
REVIEW_WINDOW_PATTERN.search(minute.text,
months=12):
        if not
RESCINDED_PATTERN.search(later_minutes(minute.scheme)):
            flag(minute.scheme,
sunset_due=minute.date + 12 * MONTH)
```

The scan flagged 341 schemes whose stated twelve-month mark had already passed by the time of sampling, spanning two broad rule families: an access/amenity restriction (a planter-box ban, a visitor-parking suspension, altered bin-store access) and a monitoring addition (a trial CCTV camera, a parcel-locker access log), the latter introduced after a single reported incident rather than a pattern of them. We invited the listed committee chair or secretary of each flagged scheme to an anonymous online survey; 193 usable responses were received (56.6%), 118 concerning an access/amenity restriction and 75 a monitoring addition.

The survey's central item asked each respondent what had actually happened to the rule at its twelve-month mark, coded into the three-category outcome described above from the respondent's own account and, for a random 40-scheme subsample, cross-checked blind against the scheme's own lodged minutes. A second item asked respondents whose rule had continued to name any evidence reviewed before it did; a third asked them to recall five verifiable details of the original precipitating incident (its month, its location within the scheme, its nature, who first reported it, and any follow-up repair or action taken), scored blind against the scheme's own file where one was available. We define a chair's recall-accuracy score as

$$\mathrm{RAS}_i = 100 \times \left(\frac{1}{5}\right) \sum_{j=1}^{5} \mathbb{1}\left[\hat{a}_{i,j} = a_j\right]$$

where a_j is the file's recorded value for detail j and $\hat{a}_{i,j}$ is the value the chair recalled, so that $\mathrm{RAS}_i = 100$ indicates all five details recalled correctly and $\mathrm{RAS}_i = 0$ indicates none. All comparisons use two-tailed tests at $\alpha = 0.05$.

Results

Across the full sample, 12% of rules were lifted by an active vote, 27% were renewed through an uncontested motion, and 61% simply continued with no motion recorded in the minutes at all (Figure 1). The pattern held in both rule families: access/amenity restrictions split 14% / 30% / 56% across the three outcomes and monitoring additions 8% / 23% / 69%, with the unremarked-continuation share the largest outcome in each family taken separately.

Chairs' ability to name any evidence reviewed before the mark passed tracked how active the outcome had been, not which rule family it concerned (Figure 2). Among chairs whose rule was lifted by vote, 68% (access/amenity) and 61% (monitoring) could name specific evidence; among those with an uncontested renewal this fell to 24% and 19%; among those whose rule simply continued, only 11% and 7% could do so — 9% pooled across both families, and consistent with the blind minute cross-check on the 40-scheme subsample, which recovered a chair-reported outcome matching the lodged minutes in 38 of 40 cases (95%).

Recall-accuracy scores for the precipitating incident, by contrast, showed no comparable separation across the three outcome groups (Figure 3). Median RAS was 58 among chairs whose rule was lifted by vote, 61 among those with an uncontested renewal, and 55 among those whose rule simply continued, with substantially overlapping interquartile ranges in all three groups (Kruskal-Wallis $H = 1.42$, $p = 0.49$). Chairs who accurately recalled the precipitating incident's date, location, nature, reporter, and any follow-up were, on this sample, no more likely to have put the rule to an active vote than chairs who recalled little or none of it.

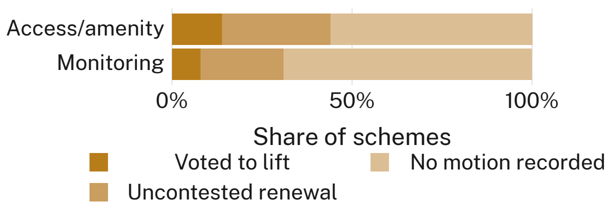

Figure 1: What happened when a precautionary rule reached its stated twelve-month mark: in both rule families, the largest single outcome is that the rule simply continued with no motion recorded (56% access/amenity, 69% monitoring).

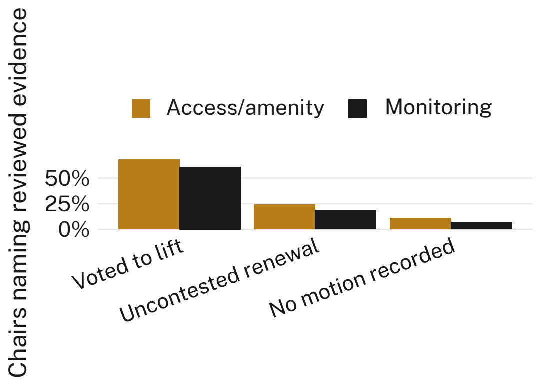

Figure 2: Share of chairs able to name evidence reviewed before the mark passed, by outcome and rule family: 68% and 61% among rules lifted by vote, falling to 11% and 7% among rules that simply continued.

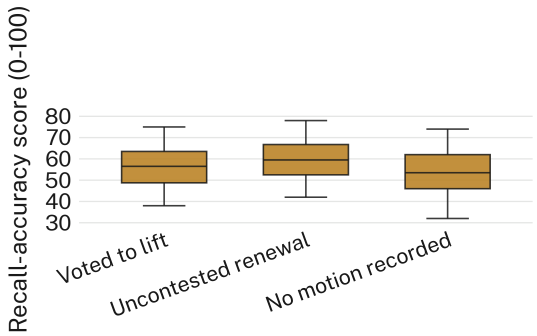

Figure 3: Recall-accuracy score for the precipitating incident, by outcome: the three distributions overlap almost completely (medians 58, 61, and 55; $p = 0.49$).

Discussion

These results suggest that a stated twelve-month review date, for most schemes in our sample, functions as a renewal default rather than as the substantive reconsideration point it is designed to be: the modal outcome is silence, not a decision either way, and the chairs least able to point to anything reviewed are the same chairs whose rule simply persisted. The null association between incident recall and outcome is, in our reading, the more informative result of the two: it suggests the review is not being skipped because chairs have forgotten why the rule exists, but that remembering does not, on its own, supply an occasion to act on that memory. A residential strata committee is a small and low-stakes setting in which to observe this, but the mechanism — a review point that a busy, uncompensated body can satisfy by doing nothing — does not obviously depend on the setting's scale, and we think the pattern is worth checking in anticipatory rules adopted by considerably larger institutions on considerably higher stakes.

Limitations

Our sampling frame is limited to schemes whose minutes are lodged in a public register, though the near-identical unremarked-continuation share across two otherwise dissimilar rule families suggests the pattern is not an artefact of any one register's disclosure practice. Outcome coding relies on chair self-report; our blind cross-check against lodged minutes recovered disagreement in only two of forty sampled schemes, suggesting self-report is a reasonably reliable proxy for the minuted record, though it cannot rule out a shared bias in what both a chair and a minute-taker choose to record. We cannot observe every precautionary rule adopted across our sampling window, only those a minute happened to describe in enough detail to flag, which likely biases our frame toward better-documented committees rather than worse ones — if this bias moves our results at all, it should understate rather than inflate the unremarked-continuation share we report, since a committee thorough enough to minute a rule's origin in the first place is, if anything, the more likely of the two to have something to show for its review.

Conclusion

Surveying chairs at 193 residential strata schemes whose precautionary by-law had reached its own stated twelve-month review date, we found that 61% of these rules simply continued with no motion recorded, that only 9% of the chairs behind that silence could name any evidence reviewed beforehand, and that a chair's own recall of the rule's precipitating incident did not predict which outcome their scheme reached. We read a sunset clause's accountability value, on this evidence, as resting on the procedure that follows it rather than on what any individual reviewer happens to remember. Future work should test whether a minimal procedural prompt — requiring a committee to record a reviewed-evidence line before any renewal, contested or not — shifts the balance among the three outcomes we describe.

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